

Second Cause of Action for Violation of California Labor Code Section 98.6: Defendant's demurrer to the second cause of action is based on the same arguments as its demurrer to the first cause of action. Defendant's demurrer to the second cause of action fails for the same reasons discussed above.

The demurrer to the second cause of action is **OVERRULED**.

Motion 2: Motion to Strike

Defendant moves to strike the claim for punitive damages from the FAC. The FAC pleads that Defendant unlawfully retaliated against Plaintiff for reporting Defendant's unlawful failure to pay wages by wrongfully terminating him and that Defendant attempted to conceal its motives for terminating Plaintiff by fabricating a false allegation that Plaintiff had failed to properly maintain timekeeping records. (FAC ¶¶ 11, 13.) A reasonable inference can be made that by engaging in such conduct, Defendant acted in a manner that was base, contemptible or vile and, thus, acted with malice. (See, e.g., *Cloud v. Casey* (1999) 76 Cal.App.4th 895, 912; see also, *Civ. Code* § 3294(c).)

In addition, contrary to Defendant's argument, the FAC adequately pleads facts showing that an officer, director, or managing agent of Defendant knew or ratified the alleged wrongful conduct. (See FAC ¶¶ 13-14.)

Based on the foregoing, the motion to strike is **DENIED**.

Counsel for Plaintiff shall give notice.

6. Pepper v. Lorkowski
25-1452672

Before the Court are the Demurrer and Motion to Strike filed on 3/25/26 by Defendants Huntington Seaport Condominium Association and Action Property Management (here, as moving parties, "MPs"), directed to the First Amended Complaint ("FAC") filed on 7/3/25 by Plaintiff Patricia E. Pepper ("Plaintiff").

The Demurrer

The Demurrer, which is directed to the Third, Fourth, Sixth and Seventh Causes of Action (each a "COA"), is **SUSTAINED**, with 15 days leave to amend.

The causes of action being contested are:

3. Negligent Hiring
4. Breach of Contract
6. Nuisance
7. Violation of B&P Code Sec. 17200 et seq.

For COA 3, the FAC fails to state the factual basis for asserting this claim against MPs. The vague allegations in ¶¶ 33-36 fail to identify who the alleged employer and employees or contractors were, what MPs allegedly knew or should have known about any employees or

contractors, or how any alleged negligence in hiring or retaining or supervising such employees/contractors led to Plaintiff's injury.

For COA 4, that claim appears to be based upon the lease. (FAC ¶ 41.) But the attached lease does not show MPs as parties. Claims of agency are not sufficiently pled and fail to address how liability could attach to MPs where the landlord has since been dismissed from this action. Nor are facts alleged to support the assertion that the flooding at issue was caused by MPs or came from any common area.

For COA 6, the FAC makes vague assertions in ¶ 50 about "Defendants" having harassed and threatened Plaintiff, but fails to state who did so, or how that created a condition which could constitute a private nuisance.

For COA 7, Plaintiff has failed to identify the particular portions of the statutory scheme which were allegedly violated, and state with reasonable particularity the facts supporting the statutory elements of the violation. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 619.) Vague assertions in the FAC at ¶ 55, which appear to be directed to the landlord, do not suffice to state the claim as to MPs.

For each of those COAs, the FAC fails to allege facts sufficient to state the COA, and COA 3 is also uncertain as pled. The Demurrer is therefore **SUSTAINED**.

Plaintiff has not met her burden here to show how any potential amendment could cure these deficiencies. However, as the FAC addressed MPs only as Does, Plaintiff will be provided with an opportunity to amend to attempt to state specific facts as to each of the MPs. Plaintiff should carefully consider the elements of any of these COAs that she may attempt to reassert as to MPs, and fully state the requisite factual basis for each, as further leave to amend should not be presumed.

The Motion to Strike

The Motion to Strike is **GRANTED**.

No facts are alleged to demonstrate a basis for any fee claim as to MPs. The FAC also fails to allege facts sufficient to support a punitive damages claim against MPs. A claim for punitive damages must be supported by specific factual allegations: conclusory characterization of conduct as "intentional, willful and fraudulent" is insufficient to state a claim under *Civil Code § 3294*. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Plaintiff has failed to do so here. The Motion to Strike is therefore **GRANTED**, with 15 days' leave to amend.

Counsel for MPs to give notice.

7. Carlton v. Ford Motor
Company
24-1445099

Before the Court is the Motion for Summary Adjudication filed by Defendant Ford Motor Company ("Ford") on 1/5/26.